

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Julian Murillo v. Nissan North America, Inc.

24CV001704

PLAINTIFF’S MOTION FOR ATTORNEYS’ FEES

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff is awarded attorneys’ fees in the amount of **\$8,217.50**. The fee award is payable within 60 days of entry of this order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. By Minute Order dated September 9, 2026, the Court ordered the moving party to file and serve an amended notice which includes the missing notice. There is no amended notice on file. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Plaintiff Julian Murillo (“Plaintiff”) moves, pursuant to a signed settlement offer and the Song-Beverly Consumer Warranty Act (Civil Code section 1794, subdivision (d)), for an Order awarding his attorneys’ fees in the total amount of \$13,920.63, which consists of (1) \$7,936.50 in attorneys’ fees for Quill & Arrow, LLP; (2) a 1.25 multiplier enhancement on the attorneys’ fees (or \$1,984.13); and (3) an additional \$4,000.00 for Plaintiff’s counsel to review Defendant’s Opposition; draft the Reply; and attend the hearing on this Motion.

Defendant does not dispute Plaintiff’s entitlement to his reasonable attorneys’ fees. Rather, Defendant opposes the Motion, arguing that (1) Plaintiff’s counsel bills at excessive and unreasonable rates considering the routine nature of this lemon law case; (2) Plaintiff’s claimed fees are unreasonable and inflated; (3) Plaintiff’s counsel’s time records are rife with padded entries; and (4) Plaintiff’s fees, costs, and expenses incurred after the issuance of the accepted 998 offer were not reasonably necessary to the litigation. (Opp., 2:15-19.) Defendant requests a reduction of Plaintiff’s fees to \$3,894.10. This reduced amount is based on: (1) a reduction of billing hours from 22.7 to 10.5 (6.7 hrs prior to 998 offer issuance + 3.8 hrs for the present motion), (2) a reduction of hourly rates ranging from between \$175 to \$950 to a blended rate of \$150 for paralegals and administrative assistances, a blended rate of \$300 for eight associate attorneys, and \$400 for the managing attorney, and (3) denial of Plaintiff’s request for a multiplier and \$4,000 in anticipated fees. (Opp., 2:20-3:3.)²

² Defendant’s Opposition also seeks a reduction of Plaintiff’s costs. However, those are not part of Plaintiff’s Motion or properly before the Court at this time. Plaintiff served and filed a Memorandum of Costs on July 17, 2026. The proper vehicle for challenging costs claimed through a Memorandum of Costs is a motion to strike or tax

B. LEGAL DISCUSSION

A court has broad discretion in determining the amount of a reasonable fee, and the award of contractual attorney's fees is governed by equitable principles. (*Burkhalter Kessler Clement & George LLP v. Hamilton* (2018) 19 Cal.App.5th 38, 43.) The first step is to compute the "lodestar" figure, which is "the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may then adjust this figure upward or downward based on factors specific to the case in order to fix the fee at the fair market value for the legal services provided. (*Ibid.*) "[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable." (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 98.)

1. Lodestar Figure – Reasonable Rate

Here, Plaintiff argues that the hourly rates of the 13 timekeepers at his counsel's firm are appropriate given their relative experience and qualifications. (Mem., 8:21-9:2; see also Declaration of Kevin Y. Jacobson ("Jacobson Decl."), ¶¶ 3-6, 48-64.) Plaintiff further argues that his counsel's rates are similar to rates that California district courts and superior courts have awarded in other lemon law cases. (Mem., 9:3-10:11; see also Jacobson Decl., ¶¶ 7-47, Exhs. 1-39.) Plaintiff also argues that the hourly rates are all below those calculated by the Laffey Matrix. (Mem., 10:5-6, citing Jacobson Decl., ¶ 46, Exh. 40.) According to Plaintiff's biller table, the three principal billers (Attorneys Jahangani, Hovhannisyan, and Yang) account for 55.07% (or 12.5 hours) of the total time spent, and the remaining 10 timekeepers billed 1.7 hours or less, on the entire matter. (Mem., 10:15-28.) Attorney Jahangani's requested hourly rate is \$350, Attorney Hovhannisyan's is \$395, and Attorney Yang's is \$375.

Defendant argues that Plaintiff has failed to show that his counsels' requested rates are the prevailing rates for attorneys conducting non-contingent litigation of the same type. Defendant, relying on *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, argues in favor of a reduced blended rate as follows: \$400 for managing attorney Jacobson, \$300 for the eight other attorneys, and \$150 for the four paralegals and administrative assistants. Defendant also argues that the Court in *Martinez v. Ford Motor Company* (S.D. Cal. Nov. 14, 2025), No. 25-cv-01213-AJB-DDL, 2025 WL 3190606, found Plaintiff's counsel's hourly rates unreasonable.

As an initial matter, the Court can find no requested hourly rates for timekeepers Lopez, Oganezova, Tellez, and Mercado. Nor does the Jacobson Decl. sufficiently address those timekeepers' experience and qualifications (Oganezova, Tellez, and Mercado are not even mentioned therein). Without the foregoing, the Court is unable to determine whether those timekeepers' hourly rates are reasonable. As such, the requested fees incurred by Lopez, Oganezova, Tellez, and Mercado are DENIED.

costs, not an opposition to the prevailing party's motion for *attorneys' fees* that does not raise or request costs. As such, the Court disregards Defendant's request in Opposition pertaining to Plaintiff's costs.

The Court does not find the opinions of the district courts or sister superior courts, offered by Plaintiff, particularly helpful given that those opinions were issued from courts located in different communities (mainly large southern California counties), for which a separate prevailing reasonable hourly rate applies. The opinions that Plaintiff points to consequently do not show that the requested rates are in line with prevailing rates in Napa County. The lodestar figure must be calculated by using the reasonable hourly rate in the local community for similar work. (See *PLCM Group, Inc.*, *supra*, 22 Cal.4th at 1095.) For this reason, Plaintiff’s reliance on the Laffey Matrix—based on rates for attorneys practicing federal litigation in the District of Columbia—is also misplaced. (See Jacobson Decl., Exh. 40; see also *Camacho v. Bridgeport Financial, Inc.* (2008) 523 F.3d 973, 979.)

The Court has reviewed *Martinez v. Ford Motor Company* (S.D. Cal. Nov. 14, 2025), No. 25-cv-01213-AJB-DDL, 2025 WL 3190606, relied upon by Defendant. Although it is not binding authority, the fact that it reviews the reasonableness of fees at the same law firm at issue here is enlightening. There, a San Diego superior court, in a lemon law matter, reduced the hourly rate of Attorney Jacobson and other partners at Quill & Arrow with a bar admission in 2018 to \$425, Attorney Jahangani and other associates at Quill & Arrow with a bar admission in 2024 to \$235, associates at Quill & Arrow with a bar admission in 2025 to \$225, associates at Quill & Arrow with a bar admission in 2017 to \$385, and associates at Quill & Arrow with a bar admission in 2021 to \$375.

While San Diego County is not Napa County, the Court is confident that Napa County rates would not exceed those in San Diego County. Thus, the *Martinez* analysis is persuasive authority upon which to reduce the hourly rates requested by Plaintiff’s counsel for this routine lemon law case in Napa County. The following chart depicts the material information presented in this motion and as analyzed by *Martinez*:

Attorney	Year of Bar Admission	<i>Martinez</i> Applied Rate (2024)	Pltf.’s Requested Rate (Year)	Def.’s Requested Reduced Rate
Altman	1986		\$950 (2025)	\$400
Jacobson	2018	\$425	\$550 (2025)	\$400
Jung	2021	\$375	\$495 (2025)	\$300
Yang	2022	>\$235, < \$385	\$375 (2025)	\$300
Stocca	2023	>\$235, < \$385	\$350 (2025)	\$300
Jahangani	2024	\$235	\$350 (2025)	\$300
Brauns	2025	\$225	\$350 (2025)	\$300
Hovannisyan	2025	\$225	\$395 (2026)	\$300
Zhang	2025	\$225	\$395 (2026)	\$300

While the Court notes that the circumstances of this 22.7-hour case are distinguishable from the 595-hour case of *Mikhaelipoor* (which utilized a blended rate), the Court finds that, for Attorneys Jahangani, Brauns, Hovannisyan, and Zhang, Defendant’s requested reduced rate exceeds the rate found reasonable in *Martinez*. Moreover, Defendant’s requested reduced rate for Attorneys Yang and Stocca seems to fall right in the range of reasonableness contemplated by *Martinez*. Thus, the Court does not find Defendant’s request for a blended rate of \$300 for these

timekeepers unreasonable and, for the foregoing timekeepers, the Court adopts Defendant's requested reduction to \$300 / hour.

For Attorney Jung, the Court finds that an hourly rate of \$400 is sufficiently supported by his experience and reasonably consistent with the rate in Napa County for similar work. For Attorney Jacobson, the Court finds that an hourly rate of \$450 is sufficiently supported by his experience and reasonably consistent with the rate in Napa County for similar work. And, for Attorney Altman, the Court finds that an hourly rate of \$600 is sufficiently supported by his experience and reasonably consistent with the rate in Napa County for similar work.

2. Lodestar Figure – Reasonable Hours

Plaintiff argues that counsel spent 22.7 hours litigating the case from September 30, 2024 through the filing of this Motion on July 17, 2026—almost a two year time frame. Attached to Plaintiff's counsel's declaration is a breakdown of hours spent by date, description of work, and hours by the tenth of an hour. (Jacobson Decl., at Exh. 42.)

Defendant presents its requested reduced hours with little explanation other than "the simplicity of the matter and the evidence demonstrating Quill and Arrow LLP's duplicated, padded, and recycled work." (See Opp., 9:7-26.) Defendant further argues that Plaintiff's counsel's 12.2 hours incurred after Defendant made its 998 offer on November 6, 2025 should be deducted.

The Court has reviewed the breakdown of hours provided by Plaintiff and does not find any of the tasks reported therein or the amount of hours spent facially unreasonable, duplicative, or padded. Defendant fails to identify any specific task or amount of hours in Plaintiff's Exhibit 42 that it contends is duplicative, padded, or recycled. Moreover, as Plaintiff contends in Reply, Defendant fails to provide any authority prohibiting hours spent after issuance of a 998 offer and before the deadline to accept. "Section 998 is a cost-shifting statute that penalizes a party who rejects a reasonable offer and fails to obtain a better result; it says nothing about a party who accepts an offer within the thirty-day window that the statute and [Defendant's] own offer provided." (Reply, 7:5-8.) The Court finds that Plaintiff has sufficiently shown that the time spent after the issuance of Defendant's 998 offer was reasonably necessary for evaluating the 998 offer. Thus, the Court does not reduce the amount of time spent in this action.

Based on the foregoing, the lodestar amount through filing of the Motion is **\$5,795**, the calculation for which is depicted below:

Attorney	Approved Rate	Hours Spent	Total Fees
Altman	\$600	0.2	\$120
Jacobson	\$450	0.3	\$135
Jung	\$400	1.7	\$680
Yang	\$300	3	\$900
Stocca	\$300	1.3	\$390
Jahangani	\$300	5.7	\$1,710
Brauns	\$300	0.7	\$210

Hovhannisyan	\$300	3.8	\$1,140
Zhang	\$300	1.7	\$510

Plaintiff's showing of additional time (5.7 hours) spent reviewing the Opposition and drafting the Reply is sufficient. The Court finds that the reasonable hourly rate for the attorney who spent this time, Attorney Chipman, who was admitted to the bar in 2019, is \$425. The Court does not award fees for anticipated time. (See Reply Declaration of Kevin Y. Jacobson, ¶¶ 6(b)(vii), 7.) Thus, the sum of **\$2,422.50** (= 5.7 hrs x \$425) shall be added to the above total.

Based on the foregoing, the reasonable amount of Plaintiff's attorneys' fees is **\$8,217.50** (= \$5,795 through filing of motion + \$2,422.50 reply).

3. Adjustment to Lodestar

The lodestar figure can be adjusted up or down based on several factors including: (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; and (4) the skill exhibited by counsel. (*In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556.)

Plaintiff requests a 1.25 multiplier on Plaintiff's attorney's fees based on the fact that counsel obtained an excellent outcome and endured substantial risks posed by this litigation by representing Plaintiff on a contingency fee basis. (Mem., pp. 11-13, citing Jacobson Decl. at ¶¶ 31, 89.)

In Opposition, Defendant requests that the Court deny the multiplier request.

Whether to apply an adjustment to the lodestar is entirely within the Court's discretion. (*PLCM Group, Inc.*, *supra*, 22 Cal.4th at 1095.) The Court does not find that the relevant factors weigh in favor of any adjustment in this routine lemon law case. Thus, Plaintiff's request for a multiplier to the lodestar amount is DENIED.

C. CONCLUSION

Plaintiff is awarded fees in the amount of **\$8,217.50**.

Mayra Aguilar v. General Motors LLC

25CV001964

PLAINTIFF'S MOTION FOR DETERMINATION OF ATTORNEY FEES AND COSTS
UNDER SETTLEMENT AGREEMENT

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff is awarded fees in the amount of \$14,232 and costs in the amount of \$1,061.50 against Defendant. \$15,293.50 is payable within 60 days of entry of this order.